

[21 & 22 GEO. 5.] *Public Works* [Ch. lxx.]
Facilities Scheme (Rothesay Water) Confirmation
Act, 1931.



CHAPTER lxx.

An Act to confirm a Scheme under the Public Works Facilities Act 1930 relating to Rothesay Water. A.D. 1931.
[31st July 1931.]

WHEREAS the Scheme set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Public Works Facilities Act 1930 and it is requisite that the said Scheme should be confirmed by Parliament : 20 & 21
Geo. 5. c. 50.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Scheme contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Scheme in schedule.

2. This Act may be cited as the Public Works Facilities Scheme (Rothesay Water) Confirmation Act 1931. Short title.

A.D. 1931.

S C H E D U L E.

ROTHESAY WATER.

Scheme to authorise the town council of Rothesay to execute works and for other purposes.

WHEREAS the provost magistrates and councillors of the royal burgh of Rothesay in the county of Bute (hereinafter called "the Corporation" and "the burgh" respectively) are the local and sanitary authority within the burgh :

And whereas the Corporation many years ago purchased out of the common good of the burgh the whole of the water undertaking of the Rothesay Water Company and have improved and extended the same and now supply and have for some time past supplied water to the burgh and the adjoining districts of Port Bannatyne and Ascog :

And whereas the town council have from time to time borrowed upon the security of the said undertaking the sum of fifty-five thousand seven hundred and forty-eight pounds forty-eight thousand five hundred and sixty-eight pounds of which have been repaid :

And whereas it is expedient that Loch Dhu one of the two lochs from which they obtain their water supply should be enlarged and that new filters should be provided :

And whereas it is expedient that the town council should be authorised to purchase the land and execute the works hereinafter described :

And whereas estimates have been prepared by the Corporation for and in relation to the purposes hereinafter mentioned in respect of which they are by this Scheme authorised to borrow money and such estimates are as follows :—

	£
Purchase of land and servitudes - - - -	850
Storage reservoir - - - - -	16,150
Aqueducts conduits and lines of pipes -	3,850
Filters and service tanks - - - - -	8,150
Road of access - - - - -	2,150
Subsidiary works - - - - -	1,000

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And whereas the several works included in such estimates are permanent works and it is expedient that the costs thereof should be spread over a term of years : A.D. 1931.

And whereas it is expedient that the town council should be authorised to borrow money for the purposes thereof as may be necessary for the purposes of this Scheme :

And whereas it is expedient that the other provisions in this Scheme contained should be enacted :

And whereas plans and sections showing the lines situation and levels of the works authorised by this Scheme and the situation of the land to be acquired for the purposes thereof and also a book of reference to such plans were duly deposited with the clerk of the county council of the county of Bute and with the sheriff clerk of the county of Bute at his office in Rothesay and are hereinafter respectively referred to as the deposited plans and sections and book of reference :

Now therefore in pursuance of the powers contained in the Public Works Facilities Act 1930 the Secretary of State makes the following Scheme :—

1. This Scheme may be cited as the Rothesay Water Scheme 1931. Short title.

2. This Scheme shall commence and have effect on and from the date of the passing of the Act confirming the same which date is in this Scheme referred to as “ the commencement of this Scheme.” Commence-
ment of
Scheme.

3. In this Scheme unless there be something in the subject or context inconsistent with or repugnant to such construction— Interpreta-
tion.

(a) The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Scheme shall subject to the provisions of this Scheme have the same respective meanings ; and

(b) The following words and expressions shall have the meanings assigned to them in this section (that is to say) :—

“ burgh ” means the royal burgh of Rothesay ;

“ Corporation ” means the provost magistrates and councillors of the burgh ;

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“water undertaking” means and comprehends the existing waterworks and water undertaking of the Corporation and the additional waterworks and water undertaking authorised by this Scheme;

“sheriff” means the sheriff of the county of Bute and includes his substitutes.

Incorporation of Acts.

4. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Scheme) are hereby incorporated with and form part of this Scheme and shall apply to the water undertaking of the Corporation (namely):—

(1) The Lands Clauses Acts :

(2) The Waterworks Clauses Act 1847 except—

(a) clauses 8 68 70 and 83;

(b) the clauses and provisions with respect to the communication pipes to be laid by the undertakers;

(c) the clauses and provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit:

(3) The Waterworks Clauses Act 1863:

(4) The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of land near the railway during the construction thereof and with respect to the crossing of roads or other interference therewith and for the purposes of this Scheme such provisions shall have effect as if the works by this Scheme authorised were referred to instead of “the railway” and as if the boundaries of the said extension and works were referred to in lieu of “the centre of the railway.”

Power to execute works.

5. Subject to the provisions of this Scheme the Corporation may make and maintain in the lines and situations and according to the levels and upon the lands delineated on the deposited plans and sections and described in the deposited book of reference the works

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hereinafter described and shown on the deposited plans A.D. 1931.
and sections (that is to say):—

Work No. 1 An extension and enlargement of the existing reservoir known as Loch Dhu commencing in the existing northern embankment of the said reservoir which said embankment is to be raised and terminating at an embankment to be formed at a point one hundred and thirty-three yards or thereby measured in a southern direction from the centre of the existing embankment at the south end of the said reservoir thereby extending the said reservoir at the southern end and raising the existing top water level thereof;

Work No. 2 A catchwater aqueduct conduit or line of pipes (Catchwater No. 1) commencing at a point six hundred yards or thereby measured in a north-easterly direction from the north-east corner of the farm steading of Meikle Kilmory and terminating in the said reservoir at or near the western end of the embankment to be formed at the southern end of the above-mentioned reservoir;

Work No. 3 A catchwater aqueduct conduit or line of pipes (Catchwater No. 2) commencing at a point six hundred and eighty yards or thereby measured in a north-easterly direction from the north-east corner of the farm steading of Meikle Kilmory and terminating in the said reservoir at or near the west end of the above-mentioned existing embankment at the south end of Loch Dhu;

Work No. 4 A catchwater aqueduct conduit or line of pipes (Catchwater No. 3) commencing at a point five hundred and forty yards or thereby measured in an easterly direction from the north-eastern corner of Kilwhinlick farm buildings and terminating at a point in the said reservoir two hundred and thirty yards or thereby measured in a northerly direction from the west end of the above-mentioned existing embankment at the south end of Loch Dhu;

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Work No. 5 A catchwater aqueduct conduit or line of pipes (Catchwater No. 4) commencing at a point five hundred and eighty yards or thereby measured in an easterly direction from the north-eastern corner of Kilwhinlick farm buildings and terminating at a point in the said reservoir one hundred and ninety yards or thereby measured in a south-westerly direction from the western end of the above-mentioned existing northern embankment;

Work No. 6 A catchwater aqueduct conduit or line of pipes (Catchwater No. 5) commencing at a point eight hundred and fifteen yards or thereby measured in a south-westerly direction from the south-west corner of Achamor Cottage and terminating at a point in the said reservoir fifteen yards or thereby measured in a south-westerly direction from the western end of the above-mentioned northern embankment;

Work No. 7 A catchwater aqueduct conduit or line of pipes (Catchwater No. 6) commencing at a point four hundred and ten yards or thereby measured in a north-westerly direction from the south-west corner of Achamor Cottage and terminating at a point in the said reservoir ten yards or thereby measured in a south-westerly direction from the western end of the above-mentioned northern embankment;

Work No. 8 A catchwater aqueduct conduit or line of pipes (Catchwater No. 7) commencing at a point seven hundred yards or thereby measured in an easterly direction from the eastern corner of Greenan Mill Farmhouse and terminating at a point in the above Catchwater No. 6 (Work No. 7) seven hundred and sixty yards or thereby from the commencement thereof;

Work No. 9 A catchwater aqueduct conduit or line of pipes (Catchwater No. 8) commencing at a point one thousand and sixty yards or thereby measured in a southerly direction from the south-west corner of Achamor Cottage and terminating at a point in the said reservoir two

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hundred yards or thereby measured in a south-easterly direction from the eastern end of the above-mentioned northern embankment; A.D. 1931.
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Work No. 10 A catchwater aqueduct conduit or line of pipes (Catchwater No. 9) commencing at a point four hundred and ninety yards or thereby measured in an easterly direction from the eastern end of the existing embankment at the south end of the said reservoir and terminating at a point in the said reservoir at or near the eastern end of the embankment to be formed at the southern end of the above-mentioned reservoir;

Work No. 11 A catchwater aqueduct conduit or line of pipes (Catchwater No. 10) commencing at a point one thousand yards or thereby measured in a southerly direction from the eastern end of the existing embankment at the south end of the said reservoir and terminating at a point in Catchwater No. 9 (Work No. 10) at a point two hundred and thirty yards or thereby measured in a south-easterly direction from the termination thereof;

Work No. 12 A road of access commencing at a point in the existing public road from Rothesay to Achamor one hundred and ten yards or thereby measured in a north-westerly direction from the point where it is joined by the road from Barone Park and terminating at a point two hundred and twenty yards or thereby measured in a westerly direction from the south-west corner of Achamor Cottage;

Work No. 13 Filters and pure water tank situated in the field or enclosure No. 804 on the 25-inch Ordnance survey map (edition of 1919) of the parish of North Bute two hundred and forty-five yards or thereby measured in a westerly direction from the south-west corner of Achamor Cottage;

Work No. 14 A storage reservoir commencing at a point two hundred and ten yards or thereby measured in a north-easterly direction from the centre of the most northerly of the two existing filters belonging to the Corporation and

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terminating in an existing embankment three hundred and fifty yards or thereby measured in a south-westerly direction from the south-west corner of Achamor Cottage;

Work No. 15 An aqueduct conduit line or lines of pipes commencing in the aforesaid embankment at the north end of Loch Dhu (Work No. 1) and terminating in a point in the stream forming the Rothesay burgh boundary one hundred yards or thereby measured in a north-westerly direction from the point where the said stream crosses under the public road south of Barone Cottage.

All of which intended works will be situated wholly in the parish of North Bute and the county of Bute.

Limits of
deviation.

6. The Corporation may in constructing the works by this Scheme authorised deviate laterally from the lines and position thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and the Corporation may also deviate vertically from the levels of the various works as shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided always that except for the purposes of crossing over a stream no part of any pipe shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections Provided further that the Corporation shall not construct any embankment or retaining wall of any reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in the case of the corresponding embankment or wall and five feet in addition.

Power to
make sub-
sidiary
works.

7. In addition to the works by this Scheme authorised and in connection therewith the Corporation may upon or in the lands delineated on the deposited plans and described in the deposited book of reference or upon or in any other lands acquired for the purposes of this scheme make erect and maintain all such embankments dams weirs intake weirs by-wash channels bridges roads accesses approaches wells tanks gauges filters filterbeds sluices outlets drains aqueducts culverts channels cuts mains

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pipes pumps rams hydraulic and other engines machinery buildings and other works and conveniences as may be necessary or convenient in connection with or subsidiary to the waterworks or of any of them or necessary for conducting distributing inspecting maintaining repairing cleansing managing and using the same but nothing in this section shall exonerate the Corporation from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. A.D. 1931.
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8. If the works by this Scheme authorised are not completed within three years from the commencement of this Scheme then on the expiration of that period the powers by this Scheme granted to the Corporation for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of works.

9. Subject to the provisions of this Scheme the Corporation may enter upon take and use such of the lands shown upon the deposited plans and described in the deposited book of reference as may be required for the purposes of the works authorised by this Scheme. Power to acquire lands.

10. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Scheme shall cease after the expiration of three years from the commencement of this Scheme. Period for compulsory purchase of land.

11. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Scheme grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Scheme in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu-duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. Power to grant servitudes by agreement.

12. The Corporation may in lieu of acquiring any lands for the purpose of the conduits or lines of pipes by this Scheme authorised where the same are intended to be constructed underground acquire such servitudes only Power to acquire servitudes only for lines of pipes.

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— making maintaining cleansing and repairing the same
and may give notice to treat in respect of such servitudes
and may in such notice describe the nature thereof and
the several provisions of the Lands Clauses Acts (inclusive
of those with regard to limited owners) shall apply to and
in respect of the acquisition of such servitudes as fully as
if the same were lands within the meaning of those Acts :

Provided that nothing herein contained shall
authorise the Corporation to acquire by compulsion any
such servitude in any case in which the owner in his
particulars of claim shall require the Corporation to
acquire the lands in respect of which they have given
notice to treat for the acquisition of a servitude only
and every notice to treat for the acquisition of a servitude
shall be endorsed with notice of this proviso :

Provided also that as regards any lands in respect of
which the Corporation have acquired servitudes only
under the provisions of this section the Corporation shall
not be required or entitled to fence off or sever such lands
from the adjoining lands but the owners or occupiers
for the time being shall subject to such servitudes at all
times have the same rights to use and cultivate the said
lands as if this Scheme had not been confirmed.

Power to
take waters. 13. Subject to the provisions of this Scheme the
Corporation may collect impound take use divert and
appropriate for the purposes of their waterworks the
waters of Loch Dhu and all such springs streams and
waters as may be intercepted by the works by this
Scheme authorised.

For pro-
tection of
Lord Bute. 14. Notwithstanding anything contained in this
Scheme or shown upon the deposited plans and sections
the following provisions shall unless otherwise agreed
upon between the Corporation and the most honourable
John Crichton-Stuart Marquis of Bute and his successors
(in this section referred to as " the marquis ") apply and
have effect (viz.) :—

(a) There is hereby reserved to the marquis the
exclusive right to the whole game and wild
fowl upon the Dhu Loch and land adjoining
thereto and the exclusive right of hunting
shooting and sporting thereon and also the
exclusive right of fishing in and boating on the

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said loch or in any reservoir or stream which A.D. 1931.
may be formed by the Corporation on the said
lands which rights of shooting fishing and boat-
ing hereby reserved may be exercised either by
the marquis himself or by others having his
authority But the marquis shall not in the
exercise of the rights reserved do anything
which may affect the purity of the water in
Dhu Loch or the stability of the works;

- (b) The works by this Scheme authorised shall be maintained by the Corporation to the satisfaction of the marquis and in particular the Corporation shall maintain the catchwater drains and also all other drains which may be formed by them for the purposes of their works clear and running and they shall place bridges across the said drains where these may be considered necessary by the marquis and shall maintain such bridges in proper repair;
- (c) The Corporation shall be bound to compensate the marquis and all parties interested for all damage caused by their operations in constructing or maintaining repairing or renewing the works hereby authorised and in particular they shall be bound to pay for all damage done to the stock on the lands by drowning or otherwise or damage done to the lands themselves by or in consequence of the works hereby authorised;
- (d) The Corporation shall be bound to fence and to keep the said Dhu Loch or such other part of the works hereby authorised as the marquis may consider necessary fenced to the satisfaction of the marquis;
- (e) The Corporation shall provide free of charge a full and sufficient supply of water not exceeding five thousand gallons per diem for the purpose of watering the stock and driving the mill on the farm of Meikle Kilmory the property of the marquis and for any other purpose of or connected with the said farm for which the marquis may require it;

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(f) After the completion of the works by this Scheme authorised the Corporation shall make up the road of access (Work No. 12) by this Scheme authorised to the satisfaction of the marquis and thereafter the said road of access shall be maintained by the marquis and by the Corporation jointly but the Corporation shall have no right of property in the said road which shall remain a private road and the property of the marquis.

Power to
discharge
water tem-
porarily
into
streams.

15. The Corporation may at any time for the purpose of repairing or of cleansing any existing works or any of the works or aqueducts authorised by this Scheme cause the water in any such works or aqueducts to be temporarily discharged into any available drain stream or watercourse. In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such powers the amount of compensation to be settled in case of difference by an arbiter to be appointed (failing agreement) by the sheriff on the application of either party.

Borrowing
powers.

16.—(1) The Corporation may borrow for the purposes of this Scheme any sum not exceeding thirty-two thousand one hundred and fifty pounds and may make and grant mortgages and assignations of the property and works to be acquired and constructed by them and all their existing water undertaking and of all tolls rates and charges exigible in respect thereof and of any revenues or moneys or securities payable or available to the Corporation under any agreements relating thereto and of their corporate estate and the lands revenue and property for the time being belonging to them in security of the payment of the money borrowed and the interest thereon.

(2) If after having borrowed the said sum or any part thereof the Corporation pay off same otherwise than by sinking fund or by the application of moneys received for lands or properties sold by them they may re-borrow the same or any part thereof.

(3) Any money borrowed or raised under this section shall be repaid within thirty years from the date of borrowing the same.

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17. The Corporation shall be bound and they are hereby authorised and required once in every year to estimate and fix the amount of money necessary to be levied for the purpose of defraying the costs charges and expenses of supplying water for and during the year then current and the loan charges in respect of any money borrowed under the provisions of this Scheme or otherwise for the purposes of the undertaking and the payment to the sinking fund together with the expense of maintaining and managing the works and obtaining and providing and distributing supplies of water and such salaries wages and other expenses of any managers treasurers engineers surveyors clerks collectors or other officers or servants employed by them and such portion of the expense of extending the mains and pipes from time to time as the Corporation shall think equitable and fair to charge to such account and all other charges and expenses chargeable against revenue. A.D. 1931.
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Corporation to estimate annual sums required.
18. In order to raise a sum of money sufficient for the purposes aforesaid it shall be lawful for the Corporation to assess and levy within the burgh rates to be called respectively "the domestic water rate" and "the public water rate" and to be assessed and levied upon the persons and property and in the manner hereinafter specified. Corporation may levy rates for supply of water.
19. It shall be lawful for the Corporation to charge for or in respect of a supply of water for domestic purposes to any houses or parts of houses occupied as separate dwellings beyond the burgh such rates as may from time to time be agreed on by the Corporation and the owners or occupiers of such houses or parts of houses. Rates for supply beyond burgh.
20. The several rates from time to time made or receivable under this Scheme by the Corporation are by this Scheme vested in the Corporation and shall be payable when and as they appoint and to the collectors and other persons whom they appoint to receive the same. Rates vested in Corporation.
21. Subject to the provisions of this Scheme the Corporation are hereby authorised and required once in every year to assess and levy the domestic water rate upon and from the occupiers of all lands and heritages within the burgh according to the gross annual value thereof as appearing in the valuation roll in force therein Domestic water rate to be levied.

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A.D. 1931. for the time being in order to raise such a sum of money as along with the public water rate after mentioned and other revenue of the Corporation in respect of their water undertaking shall be sufficient for the purposes referred to in section seventeen hereof Provided always that the rate leviable on buildings or parts of buildings appropriated and occupied as shops warehouses mills manufacturing counting-houses chambers or offices of any description shall not exceed one-half of the rate per pound which may for the time being be levied on other lands and heritages Provided also that as regards all persons who shall be the occupiers of any such lands or heritages (other than tenements situate in a close or private place) they shall not be liable to be assessed in respect thereof for the said domestic water rate unless some pipe of the Corporation shall be laid down within one hundred feet of the outer wall or fence or boundary of the same and that as regards the occupiers of tenements situate in a close or private place they shall not be liable to be assessed in respect of such tenements for the said rate unless some pipe of the Corporation shall be laid down within one hundred feet of the entrance of such close or private place Provided further that no occupier the understorey of whose dwelling-house is situate at a higher level than that at which the Corporation can supply water thereto by means of their distributing reservoirs shall be liable to the said rate in respect of such dwelling-house and property belonging thereto or occupied therewith and that no occupier of premises so situated which are not supplied with water by the Corporation shall be liable to the said rate in respect of such premises.

Corporation
may supply
water for
other than
domestic
purposes.

22. The Corporation may furnish to any person or company a supply of water for other than domestic purposes to shops offices and warehouses and for steam engines or railway purposes or for warming or ventilating any premises other than dwelling-houses or for working any machine or apparatus or for cattle or for horses or for washing carriages motor cars or other vehicles or for a hose for watering gardens or for garden fountains or ornamental purposes or for any trade manufacture business or occupation or for hotels taverns public houses or restaurants or any other purposes other than domestic (all which supplies are hereinafter included in the expressions "trade supply" or "supply for trade purposes") which

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respective supplies shall be furnished upon such terms and conditions and at such rates as shall be fixed from time to time by the Corporation and published by being exhibited in the office of the Corporation or upon such terms as may be agreed between the Corporation and any such person or company desiring such supply. Provided that in the event of any disagreement either as to the ability of the Corporation to give a supply of water under this section or as to the rates terms or conditions on or in respect of which the supply is to be given the same shall subject to the provisions of this Order be fixed by the sheriff in a summary manner upon the application of the Corporation or of any person or company aggrieved and the decision of the sheriff shall be final. Provided also that so far as possible the rate for such supply of water shall be uniform to all persons or companies in the same circumstances and requiring the same extent of supply and the charges for such supply shall be recoverable in the same manner as any other water rates or charges may be recovered under the authority of this Scheme. Provided further that when water is so supplied the Corporation shall not charge the domestic water rate and also charge for water supplied to the same premises by meter but the Corporation shall have the option either to charge the domestic water rate in respect of the premises for which a supply is given or to charge for the same by meter or they may charge in addition to the domestic water rate such special rates as may be fixed as aforesaid for water supplied otherwise than by meter for the purposes or any of them in this section mentioned. It shall further be lawful for the Corporation to dispose of any surplus water not required for any of the purposes aforesaid within the burgh to the commissioners or trustees of any harbour or other person owning or managing any harbour within or near to the burgh for the purpose of supplying vessels within the harbour and for the extinction of fires in such vessels or in any buildings or other property within the limits of the harbour and subject to the administration of such commissioners or trustees of the harbour or other persons and such commissioners or trustees of the harbour or other persons may demand and levy from the owner master agent manager or other person in charge of any vessel applying for and receiving such supply of water a reasonable sum of money

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— the rate terms or conditions on which such supply shall
 be given by such commissioners or trustees of the harbour
 or other persons to such vessels the same shall be fixed
 by the sheriff upon summary application by either of the
 parties and the decision of the sheriff shall be final.

Public water
rate to be
levied.

23. From and after the commencement of this Scheme the Corporation are hereby authorised and required once in every year to assess and levy equally upon and from the owners and occupiers of all lands and heritages within the burgh a public water rate of such sum in the pound of the rateable annual value of all such lands and heritages according to the valuation roll in force therein for the time being as the Corporation shall from time to time decide provided always that such public water rate shall not exceed twopence in the pound.

Recovery of
water rates.

24. It shall be lawful for the collector on the expiration of the time specified in the notice of assessment to recover any arrears of any water rate or charge due by any person or by any number of persons either according to the ordinary procedure before any competent court or by obtaining from the sheriff a summary warrant to recover such arrears with the addition of ten per centum thereon and such person or persons shall thereupon be bound to pay such ten per centum which warrant the sheriff shall grant on production of a certificate by the collector that he had given to each such person a notice requiring him to make payment of the amount due by him within fourteen days thereafter that the said period had expired and that the said amount was still truly due and such warrant shall authorise the collector or officers of court to enter into any premises in the occupancy of any person so in arrear and to poind seize remove or secure any goods and effects therein belonging to or in the lawful possession of such person or persons or so much thereof as will fully satisfy the arrears due by him or them with the said addition of ten per centum thereon and such warrant shall also authorise the collector or officers of court or licensed auctioneer after the lapse of four days in the event of the non-payment of the said arrears and costs to sell and dispose of the said goods and effects by public auction on three days' notice and apply the price in payment of the said arrears and ten per centum thereon

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due by such person and the balance shall be paid to such person and the collector shall for a period of three months after the date of every sale preserve evidence of the amount of such proceeds and the disposal thereof and such warrant shall also decern and ordain instant execution by arrestment. A.D. 1931.
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25. Subject to the provisions of this Scheme the Corporation shall apply all moneys from time to time received by them in respect of the water undertaking (not being money raised by borrowing for the application of which provision is otherwise made) in the manner and order following and not otherwise (that is to say):— Application
of water
revenue.

(First) In payment of the expenses of managing and maintaining the water undertaking including therein all expenses of and incidental to the raising levying and recovering of rates rents charges and revenues and the borrowing of moneys and also in payment of any feu-duties ground annuals or other charges exigible in respect of any lands or property forming part of the water undertaking;

(Secondly) In payment of interest of money borrowed (a) previous to the coming into operation of this Scheme and (b) under the authority of this Scheme;

(Thirdly) In setting apart the instalments or sinking fund for paying off the money borrowed previous to the coming into operation of this Scheme and under this Scheme;

(Fourthly) In carrying the other powers and provisions of this Scheme into execution;

(Lastly) The surplus (if any) from time to time shall be so applied as to facilitate the reduction of the domestic water rate the public water rate and the rates and charges fixed by special agreement for a supply of water when circumstances shall permit the same to be done.

26. When confirmed by Parliament this Scheme shall for the purposes of the Telegraph Act 1878 be deemed to be an Order confirmed by Act of Parliament. Application
of provisions
of Telegraph
Act 1878.

27. The water to be supplied from any main or pipe of the Corporation need not be constantly laid on under Constant
supply and
pressure.

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Facilities Scheme (Rothesay Water) Confirmation
Act, 1931.

A.D. 1931. pressure nor be supplied in any case at a level higher or
— at a pressure greater than can be supplied or afforded by
 gravitation from the existing reservoir or tank from which
 the supply is taken.

Crown
rights.

28. Nothing in this Scheme shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Costs of
Scheme.

29. All costs charges and expenses of and incident to the preparing for obtaining and confirmation of this Scheme or otherwise in relation thereto shall be paid by the Corporation out of the revenues of their water undertaking or out of moneys to be borrowed by the Corporation. Provided that if the said costs charges and expenses be paid out of borrowed money the same shall be repaid within five years from the commencement of this Scheme.

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